

Voters List Act, 2017

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Voter List Act, 2073

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Act No. 23 of the year 2073

An Act Made to Amend and Consolidate Laws Relating to the Voter List

Preamble: Whereas, it is desirable to amend and consolidate the laws relating to the voter list in a timely manner for the purpose of collecting and updating the voter list for elections held pursuant to the Constitution and federal law;

Now, therefore, the Legislature-Parliament, in accordance with Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Voter List Act, 2073".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Temporary Voter List" means the temporary voter list prepared pursuant to Section 30.

(b) "Commission" means the Election Commission constituted pursuant to Article 247 of the Constitution.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed under this Act or the rules made under this Act.

(d) "Registration Officer" means the Chief Registration Officer, Registration Officer, or Assistant Registration Officer pursuant to Section 5.

(e) "Election" means the election of the President, Vice-President, members of the Federal Parliament, members of the Provincial Assembly, and members of the local level held pursuant to the Constitution and federal law, and includes a by-election.

(f) "Election Officer" means the Election Officer as prescribed.

(g) "Constituency" means the constituency determined by the Constituency Delimitation Commission pursuant to Sub-article (1) of Article 286 of the Constitution for the election of members of the House of Representatives and members of the Provincial Assembly.

(h) "Provincial Assembly" means the Provincial Assembly constituted pursuant to Article 176 of the Constitution.

(i) "Voter" means a person whose name is registered in the voter list pursuant to Section 3.

(j) "Voter Identity Card" means the voter identity card issued pursuant to Section 27.

(k) "Federal Parliament" means the House of Representatives constituted pursuant to Article 84 and the National Assembly constituted pursuant to Article 86 of the Constitution.

(l) "Constitution" means the Constitution of Nepal.

(m) "Local Level" means a Rural Municipality, Municipality, or District Assembly. Chapter-2
Voter and Voter List

3.

Voter: For the purpose of voting in the following elections, a person whose name is included in the final voter list by the Commission shall be a voter for such election: (a) For the election of the President and Vice-President: members of the Federal Parliament and members of the Provincial Assembly; (b) For the election of a member of the House of Representatives and a member of the Provincial Assembly: a person who has permanent residence in a ward of a Rural Municipality or Municipality within the respective constituency; (c) For the election of a member of the National Assembly: members of each Provincial Assembly, Mayors and Deputy Mayors of Municipal Executive Offices, and Chairs and Vice-Chairs of Rural Municipal Executive Offices; (d) For the election of the Mayor and Deputy Mayor of a Municipal Executive Office: a person who has permanent residence in a ward within the respective Municipality; (e) For the election of the Chair and Vice-Chair of a Rural Municipal Executive Office: a person who has permanent residence in a ward within the respective Rural Municipality; (f) For the election of the Ward Chair and Ward Members of a Municipality and Rural Municipality: a person who has permanent residence in the respective ward; (g) For the election of a member of a Municipality: a member of the Municipal Assembly; (h) For the election of a member of a Rural Municipality: a member of the Rural Municipal Assembly. 4. Collection and Updating of Voter List: (1) The Commission shall, under its direct oversight, control, supervision, and direction, carry out the collection and updating of the voter list for wards of Rural Municipalities and Municipalities within each constituency. (2) While collecting and updating the voter list pursuant to Subsection (1), the Commission may specify the place and time determined by it, to be done at once or from time to time. Provided that: (1) While collecting or updating the voter list of any one ward of a Rural Municipality or Municipality, it shall be done at once. (2) After the date of an election has been announced, no name shall be registered in the voter list for the purpose of that election. (3) While collecting and updating the voter list, other arrangements including giving notice to the general public shall be as prescribed. 5.

Registration Officer: (1) The Commission may, subject to this Act, appoint a Chief Registration Officer in each district and, as required, Registration Officers and Assistant Registration Officers for the purpose of collecting the names and other necessary details of voters for elections, preparing or updating the voter list, and doing all other necessary work in relation thereto. (2) The Commission may, for the purpose of performing the work under Subsection (1), deploy or engage employees of the Government of Nepal, Provincial Government, or local level, or employees of an institution owned or controlled by the Government of Nepal or Provincial Government, or operating on grant of the Government of Nepal, or teachers of community schools, to assist the Registration Officer. (3) The office of the Registration Officer shall be located at a place specified by the Commission. 6. Registration of Name as Voter: The name of the following person shall be registered in the voter list: (a) A Nepali citizen; (b) A person who has completed the age of eighteen years on the date specified by the Commission by publishing a notice in the Nepal Gazette; and (c) A person who has permanent residence in the respective ward of a Rural Municipality or Municipality within any constituency. 7. Deemed to Have Permanent Residence: (1) For the purpose of clause (c) of Section 6, a person who has

been residing in the respective ward of a Rural Municipality or Municipality shall be deemed to have permanent residence. (2) Notwithstanding anything contained in Subsection (1), residence in the following circumstances shall also be deemed to have permanent residence: (a) Where a person whose name is registered in the voter list of a ward of a Rural Municipality or Municipality in a constituency is elected as a people's representative and is absent from such constituency during his/her term of office; (b) Where a person is absent from the respective ward of the Rural Municipality or Municipality of the constituency where his/her name is registered due to business, occupation, employment, study, teaching, government or non-governmental service, medical treatment, or any other specific work or reason, or due to being in custody or imprisonment pursuant to law. 8.

Not Deemed to Have Permanent Residence: For the purpose of clause (c) of Section 6, the following persons shall not be deemed to have permanent residence in the respective ward of a Rural Municipality or Municipality: (a) A person who takes a house on rent only on the basis that such house is rented for the purpose of operating an industry, business, or profession, or keeping an office, and his/her family members; (b) A person residing in a government, semi-government, or non-governmental organization's office and the quarters built for employees working in such office, military, police, or armed police barracks, temporary camps and quarters, industrial establishments and the housing built for employees and workers working in such establishments, hospitals, medical centers, nursing homes, schools, campuses and hostels, orphanages, old age homes, prisons, and similar other places. 9. Registration of Voters from Other Places Permitted: (1) If a person whose name is registered in the voter list of a ward of a Rural Municipality or Municipality, due to marriage or other reasons, migrates and resides in the same or another ward of a Rural Municipality or Municipality, such person's name may be registered in the respective ward of the Rural Municipality or Municipality where he/she has come to reside. (2) While getting the name registered pursuant to Subsection (1), such person shall submit to the Registration Officer evidence confirming the marriage or migration. (3) A person wishing to register a name pursuant to Subsection (1) shall submit proof relating to the previous registration. 10. No Double Registration: Except in the circumstances mentioned in Chapter-3, no person's name shall be registered or caused to be registered in the voter list of more than one Rural Municipality or Municipality, or in more than one ward of any Rural Municipality or Municipality. 11. Additional Evidence May be Required for Registration: (1) While registering a person's name in the voter list pursuant to this Act, if the person's birth or age or residence cannot be determined solely from the citizenship certificate, the Registration Officer may require additional evidence such as land ownership certificate, educational qualification certificate, passport, or driving license. (2) If the evidence requested under Subsection (1) cannot be submitted, the Registration Officer may require a recommendation from the respective ward of the concerned Rural Municipality or Municipality. (3) The name of a person who cannot submit the documents under Subsection (1) or (2) shall not be registered in the voter list. 12.

Duty to Register and Provide Details: It shall be the duty of every Nepali citizen who has attained the qualifications to become a voter under this Act to have his/her name registered, as prescribed, in the voter list of the respective ward of the Rural Municipality or Municipality where he/she has permanent residence, along with the details required for the preparation of the voter list. 13. Publication of Voter List: The procedure, place, and time for publishing the voter list prepared or updated under this Act shall be as determined by the Commission. 14. Application for Correction: (1) If there is any error in the name or details of any voter in the list published pursuant to Section 13, the concerned voter or any member of his/her family may submit an application to the concerned Registration Officer for correction. (2) The Registration Officer shall, after conducting necessary inquiry into the applications received under Subsection (1), submit them to the concerned Chief Registration Officer. 15. Complaint: (1) If anyone has included a name in the voter list by

providing false details, any person may submit a complaint with evidence to the prescribed officer. (2) The procedures for dealing with a complaint filed under Subsection (1) shall be as prescribed. 16. Application Required for Removal of Duplicate Name: If a voter's name is included in the voter list of one or more wards of one or more Rural Municipalities or Municipalities, he/she shall submit an application as prescribed to retain the name only in the voter list of the place of his/her choice and to remove the name from the voter list of other places: to the Assistant Registration Officer if within the same ward of a Rural Municipality or Municipality; to the Chief Registration Officer of the district if in different Rural Municipalities or Municipalities within the same district; and to the Commission directly or through a Registration Officer if in Rural Municipalities or Municipalities of different districts. 17.

Removal of Duplicate Name: (1) Upon application for removal of a name from the voter list under Section 16, the officer designated by the Commission shall remove such name. (2) If the Commission receives information that a voter's name is duplicated, even without an application under Section 16, the Commission may order the concerned Registration Officer to retain the name of such voter in the voter list of the respective ward of the Rural Municipality or Municipality where he/she has permanent residence and to remove it from the voter list of other Rural Municipalities or Municipalities. (3) If a Registration Officer himself/herself receives information that a voter's name is duplicated, if the duplication is within the same ward of a Rural Municipality or Municipality, the Assistant Registration Officer; if within any Rural Municipality or Municipality in the same district, the concerned Chief Registration Officer; and if in Rural Municipalities or Municipalities of different districts, the officer designated by the Commission shall retain the name of such voter in the voter list of the respective ward of the Rural Municipality or Municipality where he/she has permanent residence and shall remove it from the voter list of other Rural Municipalities or Municipalities. 18.

Removal of Name from Voter List: (1) If a person whose name is included in the voter list dies or renounces citizenship, a member of his/her immediate family or any other person shall notify the Registration Officer with evidence. (2) After receiving the notice under Subsection (1), the Registration Officer shall conduct an inquiry as prescribed; if the matter appears reasonable, the name of such voter shall be removed from the voter list as prescribed. Provided that, even if notice is not received under Subsection (1), if it is proven that a voter has married and migrated to another place and has registered his/her name in the voter list of that place under Section 9, or has migrated elsewhere for other reasons, or has died, or has renounced citizenship, or his/her citizenship has been cancelled, the Registration Officer shall remove the name of such voter from the voter list. (3) If a name is removed from the voter list under this Section, the Registration Officer shall post a notice thereof at the office of the respective ward of the concerned Rural Municipality or Municipality. 19.

Submission of Voter List: After completing the procedures under this Chapter, the Registration Officer shall, on the basis of forms and applications received from the respective ward of the concerned Rural Municipality or Municipality, update the details relating to the voter list in the records of the District Election Office and transmit such voter list to the Commission. 20.

Publication of Final List: (1) The Commission may, within thirty-five days from the date of receipt of the updated voter list under Section 19, conduct a review including duplication verification in the central database. (2) The final voter list prepared after review under Subsection (1) shall be approved by the Commission and published after completing the prescribed procedures. 21. No Change or Addition or Deletion in Final List: No change, addition, deletion, or correction shall be made in any manner in the final voter list published pursuant to Subsection (2) of Section 20. 22. Providing Details: (1) Notwithstanding anything contained elsewhere in this Act, the Commission may provide to the Government of Nepal details of the voter's name, surname, address, and photo collected for the purpose of the voter list, upon a request specifying the purpose from the Government of Nepal. (2) The Government of Nepal shall not use such

details for any purpose other than the purpose for which it obtained the details under Subsection (1). 23. Voter May Vote: (1) Every voter whose name is registered in the final voter list and who has obtained the voter identity card shall be entitled to vote in an election. (2) Notwithstanding anything contained in Subsection (1), the following voters shall not be entitled to vote: (a) A person whose mental balance is not sound; (b) A person who is undergoing a sentence of imprisonment under the federal law relating to election offences and punishments, or who has been sentenced to imprisonment of one year or more under such law and one year has not elapsed from the date of completion of such imprisonment. 24. Voter List to be Placed on Website: The Commission shall also place the final voter list published under this Act on its website for the information of the general public and the access of voters. 25. Details to be Provided: For the purpose of updating the voter list, the following bodies or officers shall provide the following details to the Commission: (a) Details of migration, marriage registration, and death registration by the Local Registrar; (b) Details of renunciation of citizenship by the District Administration Office; (c) Details of cancellation of citizenship by the Ministry of Home Affairs. 26. Voter List to be Cancelled: Notwithstanding anything contained elsewhere in this Act, if it is clearly evident from evidence that a voter list was prepared on the basis of false details and a final voter list has been published, the Commission shall cancel such voter list. 27.

Providing Voter Identity Card: (1) The Commission shall provide a voter identity card with a photo to a voter whose name is included in the voter list. (2) Other provisions relating to the voter identity card shall be as prescribed. 28. May Determine Separate Procedure: Notwithstanding anything contained elsewhere in this Act, the Commission shall, subject to the provisions of Articles 62 and 86 of the Constitution, prepare the voter list for the election of the President, Vice-President, and members of the National Assembly. The Commission may determine a separate procedure for collecting and updating such voter list. 29. No Question to be Raised in Court: No question shall be raised in any court on the following matters: (a) Whether a person's name has or has not been registered in the voter list, or whether registration is permissible or not; (b) Regarding the preparation of the voter list by a Registration Officer or a person authorized by him/her, or regarding the addition or deletion in the voter list by an officer concerned under this Chapter. Chapter-3 Provisions Relating to Temporary Voter List 30. Preparation of Temporary Voter List: (1) Notwithstanding anything contained elsewhere in this Act, for the purpose of the election to the House of Representatives and the Provincial Assembly held under the proportional representation electoral system, the Commission may cause a separate temporary voter list to be prepared. (2) The temporary voter list under Subsection (1) shall include the names of the following persons whose names are included in the final voter list under Section 20: (a) Employees working in the Government of Nepal, Provincial Government, local level, or institutions owned or controlled by the Government of Nepal or Provincial Government; (b) Nepal Army personnel, Nepal Police, or Armed Police Force personnel stationed in barracks; (c) Detainees and prisoners in prison: Provided that the name of a person serving a sentence for an election offence shall not be included in the temporary voter list; (d) Employees and security personnel deployed in election work; (e) Persons residing in old age homes operated by the Government of Nepal, Provincial Government or local level, or operated with the approval of the Government of Nepal, Provincial Government or local level; (f) Other persons specified by the Commission. (3) Other provisions relating to the temporary voter list shall be as prescribed. Chapter-4 Offences and Penalties 31.

Offence: If any of the following acts are committed, it shall be deemed to have committed an offence under this Act: (a) If anyone registers or applies for registration by falsifying his/her name, surname, residence, age, or other details, or lodges an objection by such falsification; (b) If anyone knowingly adds, alters, corrects, or in any way damages, harms, or destroys the voter list; (c) If anyone intimidates, threatens, or induces with any kind of fear, threat, or allurements, or uses force to cause a deviation in performing or causing to perform

the duty of an employee deployed in the work of preparing the voter list; (d) If anyone breaches the confidentiality of documents or details that are required to be kept confidential; (e) If anyone unauthorizedly publishes or distributes, or knowingly misuses, the voter's name, surname, residence, photo, and other details collected by the Commission for the purpose of voter list registration; (f) If anyone uses the voter list contrary to Subsection (2) of Section 22. 32. Punishment: (1) A person who commits the following offences shall be punished as follows: (a) A person who commits the offence under clause (a) of Section 31 shall be liable to a fine of up to one hundred thousand rupees or imprisonment of up to six months or both; (b) A person who commits the offence under clauses (b), (c), (d), (e), and (f) of Section 31 shall be liable to a fine of up to twenty-five thousand rupees or imprisonment of up to one month or both. (2) A person who attempts, aids, or abets the commission of an offence under this Act shall be liable to half the punishment prescribed for the person committing the offence. 33. Investigation Officer: The investigation of a case relating to an offence under this Act shall be conducted by the Election Officer as prescribed. 34. Government to be Plaintiff: A case filed under this Act shall be filed with the Government of Nepal as plaintiff. 35. Filing of Case: After the investigation of an offence under this Act is completed, the Investigation Officer shall submit it to the concerned government attorney for a decision whether or not to prosecute, and if the government attorney decides to prosecute, the Investigation Officer shall file the case. 36. No Bar to Punishment under Other Prevailing Law: If any act or action that constitutes an offence under this Act also constitutes an offence under any other prevailing law, this Act shall not be deemed to bar punishment for such offence under that law. Chapter-5 Miscellaneous 37.

Not Admissible as Evidence for Other Purposes: The voter list or temporary voter list prepared under this Act shall not be admissible as evidence for the purpose of voting and for any other purpose unless specifically provided for in the prevailing law. 38. Claim for Compensation: (1) If any person suffers physical or mental harm or loss due to the misuse, unauthorized publication, or distribution of the details relating to voters collected by the Commission under this Act or the details provided by the Commission under Section 22, the person who suffered such harm or loss may claim compensation from the person causing such harm or loss. (2) A claim for compensation under Subsection (1) shall be made in the concerned District Court within six months from the date of suffering such harm or loss. (3) If the claim under Subsection (2) is found to be valid, the District Court shall order the person to pay reasonable compensation. (4) Other procedures relating to compensation under this Section shall be according to the prevailing law. 39. Certification of Voter: If any voter whose name is registered in the voter list of a constituency submits an application as prescribed requesting certification of that fact, the Commission shall certify that fact as prescribed. 40. Assistance Committee: The Commission may form an assistance committee at the local level, including representatives of political parties and other stakeholders, to assist in the work of collecting and updating the voter list or temporary voter list under this Act. 41. May Seek Assistance: (1) In the course of preparing the voter list, the Commission and the Registration Officer may, as necessary, seek assistance from any institution or body owned or controlled by the Government of Nepal, Provincial Government, or local level, or operating on a grant from the Government of Nepal, Provincial Government, or local level, or from political parties, social organizations, institutions, and other bodies, and from any person. (2) It shall be the duty of all concerned to provide necessary assistance under Subsection (1) when preparing the voter list. 42. Delegation of Powers: The Commission may delegate any of its powers under this Act, subject to conditions, to the Chief Election Commissioner, Election Commissioner, or any government employee. 43. Power to Make Rules: The Commission may make necessary rules for the implementation of this Act. 44.